

Policy Recommendations

Open spectrum is not inevitable. Technologies now available or under development will lay the groundwork for a radically more open and more efficient wireless environment, but without the right policy framework, those technologies may never see the light of day. WiFi, exciting though it may be, cannot simply evolve into the full realization of open spectrum. If the US wants to enjoy the benefits of open spectrum, it must take steps to facilitate it.

First, Do No Harm

Despite the promise of open spectrum, there are many threats to the continued growth of unlicensed wireless. Open spectrum profoundly threatens the status quo. It represents a new form of potential competition for existing wireless services, and for wired services as well. Moreover, it runs counter to conventional assumptions about which policies are truly market-based. Absent a clear understanding of open spectrum's implications, policy-makers may take actions that would prevent it from reaching its potential. The FCC and Congress must ensure that the following threats from incumbent industries do not undermine the future potential of unlicensed technologies:

○ Requests For Regulatory Protection

Sirius Satellite Radio filed a petition with the FCC earlier this year seeking restrictions on WiFi based on trumped-up concerns about interference with its adjacent licensed satellite transmissions. Though Sirius hadn't even launched its service and the potential for interference was minimal, it wanted significant limitations and new device requirements placed on the thriving WiFi industry. The Sirius petition was withdrawn after it provoked serious objections. Nonetheless, it gives a sense of how licensed users could seek to hamstring unlicensed alternatives. Wireless operators facing new competition from unlicensed devices may similarly rely on scare tactics and legal maneuvers to prevent unlicensed services from encroaching on their markets.